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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

I,

**DECLARATION OF FRANCISCUS
DYLAN ROSARIO
IN SUPPORT OF MOTION FOR LEAVE
TO FILE
THIRD AMENDED COMPLAINT**

FRANCISCUS DYLAN ROSARIO, declare as follows:

1. PERSONAL KNOWLEDGE

1. I am the Plaintiff in this action. I have personal knowledge of the facts stated herein, except as to matters stated on information and belief, and as to those matters, I believe them to be true. If called as a witness, I could and would competently testify to the following.

2. PROCEDURAL BACKGROUND

2. On **December 23, 2025**, I filed the original Complaint in this action, asserting claims for fraud and unfair business practices arising from CSAA Insurance Exchange's handling of my claim.
3. On **February 25, 2026**, I filed the First Amended Complaint to address procedural issues.

1 4. On **April 22, 2026**, Defendant filed a Motion to Strike under Code of Civil Procedure § 436,
2 raising seven objections to the operative complaint.
3

4 **3. UNDERLYING FACTS — THE COLLISION AND THE DENIAL**

5 5. On **February 4, 2021**, I was involved in a motor vehicle collision in San Francisco with
6 CSAA’s insured, Subhi Abdelhalim.

7 6. On **February 25, 2021**—just 21 days after the collision—CSAA sent me a denial letter for
8 **Claim No. 1004-09-1054**. The letter was signed by **Sarah Rash, Claims Representative**.

9 7. The denial letter stated, in pertinent part:

10 “We have concluded our investigation of your claim. Based on our investigation, and
11 after carefully reviewing the facts and circumstances of your claim, we have concluded
12 that our insured is not liable. . .”

13 8. At the time I received this denial, I was an unrepresented claimant with no independent means
14 to verify the scope of CSAA’s investigation. I accepted the denial as the product of a legit-
15 imate investigative process because the letter expressly represented that CSAA had “con-
16 cluded” its investigation and “carefully reviewed” the facts.
17

18 **4. THE EVIDENCE CSAA FAILED TO OBTAIN**

19 9. As I later learned through the underlying litigation, at the time of the February 25, 2021
20 denial, CSAA had not obtained:

21 (a) The **911 audio recording** from the date of the collision—which contains the insured’s
22 own statements acknowledging contact with me;

23 (b) My **contemporaneous 911 report** stating that the driver struck me;

24 (c) **Body-worn camera footage** from responding officers—which contains a third-party
25 eyewitness (Justin Rosemond) independently corroborating that the driver struck me.

26 10. Taken together, these three sources constituted virtually uncontested evidence of liability:
27 confession, victim report, and eyewitness corroboration. CSAA denied my claim without
28 obtaining any of them.

5. THE THREE-ANCHOR DELAYED-DISCOVERY SEQUENCE

11. I did not discover the facts constituting the fraud until the following sequence of events:

- (a) **January 17, 2025:** Defense counsel in the underlying action filed Motion in Limine No. 17, asserting that the 911 materials had “not been produced in discovery” and were of “unknown provenance.” This revealed that CSAA had never obtained them during its 2021 “investigation.”
- (b) **February 18, 2025:** At a pretrial hearing, Jeremy Jessup (Dolan Law Firm) testified that these materials had been produced to defense counsel in August-September 2022. Defense counsel simultaneously stated the 911 call was “news to me.” This direct contradiction established that the materials existed and had been in defense possession, but the non-investigation had been concealed.
- (c) **April 16, 2025:** Defense counsel admitted on the trial record: “They were provided by Dolan. He has had them for whatever, sure.” (RT 7, p. 213, ll. 13–15.)

12. These three events, taken together, constitute the first point at which I could reasonably have determined that CSAA’s 2021 representation of investigative completeness was false.

6. RESPONSE TO MOTION TO STRIKE

13. After reviewing Defendant’s Motion to Strike, I determined that certain amendments to the complaint would address the objections raised while preserving the substance of my claims.
14. I have prepared the proposed Third Amended Complaint (“TAC”) attached hereto as Exhibit A.
15. The TAC addresses each of Defendant’s seven objections, as set forth in the Memorandum of Points and Authorities and the Cure Matrix filed herewith.
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1 **7. GOOD FAITH**

2 16. I am filing this motion in good faith. I genuinely believe that the claims asserted in the TAC
3 are meritorious and supported by the certified record.

4 17. I am not filing this motion for purposes of delay or harassment. I seek leave to amend so that
5 my claims may be adjudicated on their merits.
6 _____

7 **8. NO PREJUDICE TO DEFENDANT**

8 18. To the best of my knowledge, granting leave to amend will not prejudice Defendant:

9 (a) The TAC does not add any new parties.

10 (b) The TAC does not assert fundamentally new theories of liability.

11 (c) No additional discovery should be necessary.

12 (d) The case is at an early stage.
13 _____

14 **9. CONCLUSION**

15 19. I respectfully request that this Court grant leave to file the Third Amended Complaint so that
16 my claims may be adjudicated on their merits.
17 _____

18 I declare under penalty of perjury under the laws of the State of California that the foregoing is
19 true and correct.

20 Executed on _____ at _____, California.
21 _____

22 FRANCISCUS DYLAN ROSARIO

